

26STCV10961 26STCV10961

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Case Number: 26STCV10961 Hearing Date: August 27, 2026 Dept: 307

16 TENTATIVE RULING 9:15 a.m., Thursday, August 27, 2026

KIMBERLY

TURBIN v. MY WIRELESS GLA, INC. [26STCV10961]

DEFENDANT

MY WIRELESS GLA, INC.'S MOTION TO COMPEL ARBITRATION AND STAY OR DISMISS
PROCEEDINGS

TIMELINE:

Employment dispute: FEHA & Labor Code violations

8/26/2024: Defendant My Wireless GLA, Inc.

("Defendant") hires Plaintiff Kimberly Turbin ("Plaintiff") as a retail sales
associate for Defendant's store in Hawthorne, CA.

4/25/2025: While Plaintiff was working in the
store, a male customer sexually assaulted her. The same evening, Plaintiff
reports the sexual assault to Defendant's HR representative via email.
Plaintiff requests a psychological evaluation and workers' compensation
benefits for treatment.

4/27/2025: A male co-worker asks Plaintiff to
determine the age of a female customer, who was 15 years old. Two days later,
the female customer's mother comes into Defendant's store, accuses the male
co-worker of raping her 15-year-old daughter, threatens to shoot the male
co-worker, and demands to know why Plaintiff had allowed her daughter to leave
the store with the male co-worker. On 4/30/2025, Plaintiff reports her safety

concerns related to the male co-worker to Defendant's HR representative via email and indicates that the male co-worker should not be left alone with female employees.

5/16/2025:

Defendant terminates Plaintiff's employment, citing a policy

violation.

4/3/2026: Plaintiff files the Complaint,
alleging causes of action for:

1. Retaliation in Violation of the
FEHA

2. Whistleblower Retaliation in
Violation of Lab. Code § 1102.5

3. Failure to Provide Meal Periods in
Violation of Lab. Code §§ 512, 226.7

4. Failure to Pay All Wages for Hours
Worked in Violation of Lab. Code §§ 510, 1194, 1197, 1197.1

5. Failure to Reimburse Business
Expenses in Violation of Lab. Code § 2802

6. Failure to Provide Accurate
Itemized Wage Statements in Violation of Lab. Code § 226

7. Waiting Time Penalties in
Violation of Lab. Code §§ 201-203

8. Wrongful Termination in Violation
of Public Policy

6/10/2026: Defendant files an Answer to the
Complaint.

7/13/2026: Defendant files this Motion to

Compel Arbitration, which is followed by Plaintiff's Opposition (8/14/2026) and Defendant's Reply (8/20/2026).

TENTATIVE

RULING: DEFENDANT MY WIRELESS GLA, INC.'S MOTION TO COMPEL ARBITRATION is DENIED.

I. MOTION
TO COMPEL ARBITRATION

Defendant moves to compel Plaintiff's entire Complaint to arbitration on the grounds that Plaintiff's claims are governed by Mutual Binding Arbitration Agreements executed in connection with Plaintiff's employment for Defendant. (Montoya Decl., Exhs. 2-3.)

A.
Existence
of an Agreement to Arbitrate

Defendant submits copies of the two Mutual Binding Arbitration Agreements, the first of which was signed by Plaintiff on 8/23/2024 (the "First Agreement") and the second of which was purportedly signed by Plaintiff on 1/1/2025 (the "Second Agreement"). (Montoya Decl., ¶¶ 9-10, Exhs. 2-3.) The Second Agreement contains slightly updated terms compared to the First Agreement and also contains a supersession clause. (Id., Exh. 3, at p. 4.) The Second Agreement states, in relevant part:

Both the Company and you agree that, except as provided in this Agreement, any claim, dispute, and/or controversy that either you may have against the Company, or the Company may have against you, arising out of, related to, or having any relationship or connection whatsoever with your seeking employment by, employment by, or separation of employment with the Company, shall be submitted to and determined exclusively by binding arbitration under the procedural and substantive provisions of the Federal Arbitration Act.

.
..

Unless the claim or dispute is expressly excluded below, this Agreement applies to any and all claims, disputes, and/or controversies, past, present or future, between you and the Company arising out of, related to, or having any relationship or connection with your seeking employment, employment, and/or separation of employment with the Company and survives after the employment relationship terminates.

(Id., Exh. 3, at p. 1, italics added.) The Second Agreement further provides:

You understand that by agreeing to this Agreement, both you and the Company give up your rights to bring any claims covered by this Agreement in court and to have a trial by jury of those claims.

BY SIGNING BELOW OR BY ACCEPTING EMPLOYMENT AND/OR CONTINUING YOUR EMPLOYMENT AFTER RECEIVING NOTICE OF THIS AGREEMENT, YOU HEREBY ACKNOWLEDGE THAT YOU HAVE READ THE ABOVE AGREEMENT, UNDERSTAND IT, AND AGREE TO ITS TERMS.

(Id., Exh. 3, at p. 5.) Both Plaintiff and a representative for Defendant signed the Second Agreement. (Ibid.) Plaintiff does not dispute that she signed the Second Agreement.

Based on the above provisions, the Court finds that the Second Agreement (which supersedes the First Agreement) governs each of the claims asserted in Plaintiff's Complaint, which all arise out of Plaintiff's employment for Defendant. Thus, the Court finds Defendant has overcome its initial burden in moving to compel arbitration by attaching a copy of the parties' alleged agreement to arbitrate the claims alleged in Plaintiff's Complaint. (See *Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, 543-44.) Accordingly, the burden shifts to Plaintiff to prove any fact necessary to her defense by a preponderance of the evidence. (*Banner Entertainment, Inc. v. Superior Ct. (Alchemy Filmworks, Inc.)* (1998) 62 Cal.App.4th 348, 356-57.)

B.

The

EFAA Exempts Plaintiff's Complaint From Arbitration

Notwithstanding

the above, the Court finds that the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act ("EFAA") categorically bars the enforcement of the two Mutual Binding Arbitration Agreements against Plaintiff in this action. Under the EFAA, "at the election of the person alleging conduct constituting a ... sexual assault dispute ...

no predispute arbitration agreement ... shall be valid or enforceable

with respect to a case which is filed under Federal, Tribal, or State law and

relates to the sexual assault dispute..." (9 U.S.C.A., §

402, subd. (a), *italics added*.) "An issue as to whether this chapter

applies with respect to a dispute shall be determined under Federal Law." (*Id.*, subd.

(b).) "The EFAA expressly provides that its applicability 'shall be determined

by a court, rather than an arbitrator.'" (*Quilala v. Securitas Security*

Services USA, Inc. (2025) 117 Cal.App.5th 75, 84 (*Quilala*), quoting 9 U.S.C.A., § 402, subd.

(b).) For purposes of

this statute, the term "sexual assault dispute" means "a dispute involving

a nonconsensual sexual act or sexual contact, as such terms are defined in

section 2246 of title 18 or similar applicable Tribal or State law, including

when the victim lacks capacity to consent." (9 U.S.C.A. § 401(3), *italics added*.)

"Under the EFAA, when a plaintiff's lawsuit contains at least one claim

that fits within the scope of the act, the arbitration agreement is

unenforceable as to all claims asserted in the lawsuit." (*Liu*

v. Miniso Depot CA, Inc. (2024) 105 Cal.App.5th 791, 800 (*Liu*).) In other words, "[t]he statute's plain language

makes clear that the exemption applies to the case, not individual

claims, where a plaintiff alleges conduct constituting sexual harassment or

sexual assault." (*Quilala, supra*, 117 Cal.App.5th at p. 88.)

Here, Plaintiff

argues that her retaliation and wrongful termination claims plainly relate to

her allegations that she was sexually assaulted by a customer while working at

Defendant's store, that she reported the sexual assault to Defendant (in

addition to reporting another alleged sexual assault of a minor by a

co-worker), and that she was subsequently terminated despite these protected

complaints. Because the underlying factual allegations of supporting her claims

involve non-consensual sexual contact, Plaintiff contends that her retaliation

and wrongful termination claims broadly relate to a "sexual assault

dispute" under the meaning of 9 U.S.C.A. § 401(3), and therefore, the EFAA applies

to this lawsuit. Based on the reasons outlined below, the Court agrees.

Because

the EFAA is a relatively recent statutory framework, there is limited binding California authority discussing the scope of the EFAA in the context of the facts alleged here by Plaintiff. However, questions regarding the applicability of the EFAA are intended by Congress to be determined under federal law. (9 U.S.C.A., § 402, subd. (b).) Thus, the Court will consider persuasive federal authority to inform its opinion the applicability of the EFAA here. For example, the U.S. District Court for the District of Oregon considered a factually similar dispute to Plaintiff's claims, where the employee-plaintiff's claims were related to a domestic violence incident by a non-employee third-party (her ex-partner) which she reported to the employer-defendant due to safety concerns, which ultimately gave rise to discrimination and failure to accommodate claims after the plaintiff was terminated shortly thereafter. (*Polen v. API Group Life Safety USA, LLC* (D. Or., Nov. 21, 2025, No. 3:25-CV-1196-SI) 2025 WL 3251349, at p.*2 (*Polen*).) Like in Plaintiff's case here, in *Polen*, there were no allegations that the defendant's employee had directly sexually assaulted the plaintiff. (*Id.*, at p. *5.) Instead, like the *Polen* lawsuit arose out of allegations that the plaintiff's employer had "improperly caused negative employment repercussions because of her sexual assault." (*Ibid.*)

In

evaluating the intended scope of the EFAA, the *Polen* court determined that Congress's definition of "sexual assault dispute" was intended to be interpreted broadly, as any "dispute that in some way includes or concerns sexual assault." (*Id.*, at p. *3, italics added.) The District Court explained that "Congress's use of 'relates to' extends the EFAA exemption to all cases that have a connection to a dispute that involves (includes or concerns) sexual assault." (*Id.*, at p. *4.) Accordingly, the *Polen* court concluded that "the EFAA requires only that the dispute itself involve sexual assault or contact—not that the defendant caused or engaged in the sex act." (*Id.*, at p. *3, italics added.) As applied to the facts of the *Polen* case, the District Court found that the employee-plaintiff had alleged a dispute with her employer that "involves" a sexual assault because "her claims relat[ed] to her status as a victim of sexual violence," and thus, the plaintiff's claims fell within the unambiguous language of the EFAA. (*Id.*, at p. *5.)

Like in *Polen*,

here, Plaintiff also alleges “a dispute over how [her employer unlawfully] handled [Plaintiff’s] status as a victim of sexual assault,” thus constituting a “sexual assault dispute” under the meaning of the EFAA. (*Polen*, supra, 2025 WL 3251349, at p. *6.) Because Plaintiff’s retaliation and wrongful termination claims “relate to” this sexual assault dispute, the *Polen* court suggests that Plaintiff’s lawsuit falls within the broad scope of the EFAA and Plaintiff’s claims should not be compelled to arbitration. Although *Polen* is not directly binding on this Court, the District Court’s evaluation of Congress’s intent for the EFAA to apply broadly to claims involving sexual assault is persuasive. The *Polen* court’s broad interpretation of the EFAA is also consistent with Congress’s overall intent in enacting the EFAA “to restore access to the courts for victims of sexual harassment and assault” and to correct the power imbalance between employees and employers “in a system that ‘often favors the company over the individual.’” (*Quilala*, supra, 117 Cal.App.5th at p. 83.)

Defendant

argues that no “sexual assault dispute” exists here because Plaintiff is not seeking to hold Defendant liable for directly committing, permitting, ratifying, or failing to prevent either alleged assault and Plaintiff is not seeking redress for the alleged sexual assault itself. (*Rep.*, at p. 2.) However, Defendant submits no legal authority supporting its position that a plaintiff must assert a specific claim against Defendant seeking direct redress for a sexual assault itself in order for a lawsuit that broadly involves and relates to a sexual assault to fall within the scope of the EFAA. As *Polen* suggests, a lawsuit which involves Defendant’s unlawful conduct in response to Plaintiff’s status as a sexual assault victim falls within the broad definition of “sexual assault dispute” and a plaintiff is not required to establish that the defendant either caused or engaged in the sexual assault such that she can seek direct relief from the defendant for the sexual assault itself. (*Polen*, supra, 2025 WL 3251349, at pp. *3-5.) Defendant relies on *Kader v. Southern California Medical Center, Inc.* (2024) 99 Cal.App.5th 214 (*Kader*), which merely considers the issue of when a “dispute” can be said to have arisen, rather than evaluating the strength of the connection between a given cause of action and the underlying sexual assault allegations. (*Id.*, at p. 222.) However, *Kader* does not provide authority for Defendant’s contention that a plaintiff must be seeking direct redress for a sexual assault from a defendant for her lawsuit to fall within the scope of the EFAA. Thus, the Court finds that Defendant’s interpretation of the EFAA is overly narrow

and unsupported by any legal authority (whether binding or persuasive) that contradicts the conclusion reached by the District Court in Polen.

In sum,

the Court finds that Plaintiff's allegations that she was sexually assaulted in the workplace and was retaliated against for reporting this assault to Defendant constitutes a "sexual assault dispute" in the broad sense because it involves a dispute over Defendant's unlawful handling of Plaintiff's status as a victim of sexual assault. (9 U.S.C.A. § 401(3).) Plaintiff's retaliation and wrongful termination claims against Defendant therefore "relate to" the underlying sexual assault dispute and fall within the EFAA as a matter of law. (9 U.S.C.A., § 402, subd. (a).) Accordingly, the Mutual Binding Arbitration Agreements which would otherwise govern Plaintiff's employment-related claims are unenforceable as to all claims asserted in the instant lawsuit. (Liu, supra, 105 Cal.App.5th at p. 800; Quilala, supra, 117 Cal.App.5th at p. 88.)

Therefore, Defendant's Motion to Compel Arbitration is DENIED.

III. EVIDENTIARY OBJECTIONS

Plaintiff

objects to the Declaration of Krista Montoya (nos. 1-3). The following evidentiary objections are SUSTAINED: 2 (vague). The following objections are OVERRULED: 1 and 3.

IV. REQUEST FOR JUDICIAL NOTICE

Plaintiff

requests judicial notice of two orders denying motions to compel arbitration in the matters of Robert Novello v. HEG Enterprises, Inc. (Case No. 30-2024-01420818-CU-WT-WJC) and Michael Dowd v. ACE American Insurance Company (Case No. 30-2024 01449736-CU-WT-NJC), dated 8/14/2025 and 9/24/2025, respectively.

Defendant My Wireless GLA, Inc. to serve notice of ruling. This tentative ruling ("TR") shall be the order of the Court

unless changed at the hearing and shall by this reference be incorporated into the Minute Order.

TR

emailed to counsel and posted to court